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Division: Civil Law and Motion

Department: G

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Case Number: 25PSCV01266 Hearing Date: August 27, 2026 Dept: G

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Responses to Form Interrogatories, Set Two, and Request for Evidentiary, Issue, and Monetary Sanctions

Respondent:

NO OPPOSITION

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Responses to Special Interrogatories, Set One, and Request for Evidentiary, Issue, and Monetary Sanctions

Respondent:

NO OPPOSITION

Defendant

Jason Young's Motion for Order Deeming Admitted Requests for Admission, Set One, and Request for Evidentiary, Issue, and Monetary Sanctions

Respondent:

NO OPPOSITION

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Deposition and Request for Evidentiary, Issue, Terminating, and Monetary Sanctions

Respondent: NO OPPOSITION

Defendant Jason Young's Motion Re: Plaintiff

Jesus Alvarado's Responses to Requests for Production, Set Two, and Request for
Evidentiary, Issue, Terminating, and Monetary Sanctions

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Responses to Form
Interrogatories, Set Two, is GRANTED.

The Request for Monetary Sanctions is GRANTED. The Request for Evidentiary and Issue
Sanctions is DENIED WITHOUT PREJUDICE.

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Responses to Special
Interrogatories, Set One, is GRANTED. The
Request for Monetary Sanctions is GRANTED.

The Request for Evidentiary and Issue Sanctions is DENIED WITHOUT PREJUDICE.

Defendant

Jason Young's Motion for Order Deeming Admitted Requests for Admission, Set
One, is GRANTED. The Request for
Monetary Sanctions is GRANTED. The
Request for Evidentiary and Issue Sanctions is DENIED WITHOUT PREJUDICE.

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Deposition and Request for
Evidentiary, Issue, Terminating, and Monetary Sanctions is DENIED WITHOUT PREJUDICE.

Defendant

Jason Young's Motion Re: Plaintiff Jesus Alvarado's Responses to Requests for
Production, Set Two, is GRANTED. The
Request for Monetary Sanctions is GRANTED.
The Request for Evidentiary, Issue, and Terminating Sanctions is DENIED WITHOUT PREJUDICE.

Plaintiff

Jesus Alvarado is ordered to serve verified responses to Defendant's discovery, without objections, in ten (10) days.

Defendant

Jason Young is AWARDED sanctions in the amount of \$550.00, payable in thirty (30) days.

BACKGROUND

This

is a personal injury action arising out of a motor vehicle collision. On March 30, 2024, defendants Jason Young (Young) and 7-Eleven, Inc. (7-Eleven) allegedly collided their motor vehicle into that of plaintiff Jesus Alvarado (Alvarado), injuring him.

On

April 9, 2025, Alvarado filed the Complaint, alleging causes of action for (1) motor vehicle and (2) general negligence.

On

April 6, 2026, the court conducted an informal discovery conference and directed Alvarado to provide verified responses. On April 28 and 29, 2026, Young filed these discovery motions, which are unopposed.

This

case is set for a case management conference (further)/trial setting conference and a hearing on the motions on August 27, 2026.

MOTIONS

TO COMPEL DISCOVERY AND REQUESTS FOR MONETARY SANCTIONS

Defendant

Young moves to compel responses to interrogatories and requests for production of documents and deem the truth of matters specified. (Young does not move to compel Alvarado's deposition.)

For

the following reasons, the motions and requests for monetary sanctions are GRANTED.

Legal

Standard

A

propounding party may file a motion to compel responses to interrogatories or to requests for production, or a motion to deem admitted matters specified in a request for admissions, if a response has not been received. (Code Civ. Proc., §§ 2030.290, subd. (b); 2031.300, subd. (b); 2033.280, subd. (b).)

A response must be provided within 30 days of service, but if responses are untimely, the responding party waives objections. (Code Civ. Proc., §§ 2030.260, subd. (a); 2030.290, subd. (a); 2031.260, subd. (a); 2031.300, subd. (a); 2033.280, subd. (a).)

Monetary

sanctions are mandatory as against any party who fails “to respond or to submit to an authorized method of discovery,” “who unsuccessfully . . . opposes a motion to compel [discovery],” or whose failure to serve a timely response necessitated a motion to deem request for admissions as admitted, unless the court finds “the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (a); 2025.450, subd. (g)(1); 2030.290, subd. (c); 2031.300, subd. (c); 2033.280, subd. (c).)

Justification is “substantial” if it is “clearly reasonable because it is well-grounded in both law and fact.”

(Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.) The court may award sanctions in

favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(Cal. Rules of Court, rule 3.1348(a).)

While the imposition of sanctions is mandatory, the court “has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.”

(Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.)

Discussion

Defendant

Young served Plaintiff Alvarado with Form Interrogatories, Set Two; Special Interrogatories, Set One; Requests for Admission, Set One; and Requests for

Production, Set Two on February 18, 2026.

(Gonzalez-McCaulley Decl. Re: FROGS, Set Two, ¶ 2; Gonzalez-McCaulley Decl. Re: SROGS, Set One, ¶ 3; Gonzalez-McCaulley Decl. Re: RFA, Set One, ¶ 3; Gonzalez-McCaulley Decl. Re: RFP, Set Two, ¶ 3.) Alvarado's counsel informed Young that Alvarado was in immigration detention on March 3, 2026. (See Gonzalez-McCaulley Decl. Re: FROGS, Set Two, ¶ 4.) Nevertheless, Alvarado failed to serve responses before the deadline, and the court directed Alvarado to serve verified responses at the informal discovery conference on April 6, 2026. (See 4/6/2026 Min. Order, p. 1.) Despite the court's direction, Alvarado failed to serve timely verified responses.

Accordingly, Defendant's motions to compel responses to Form Interrogatories, Set Two; Special Interrogatories, Set One; Requests for Admission, Set One; and Requests for Production, Set Two are GRANTED.

Since

Alvarado failed to serve responses to Young's discovery requests, the Code of Civil Procedure requires that the court impose monetary sanctions. Young's counsel charges a rate of \$250 per hour. (See Gonzalez-McCaulley Decl. Re: RFP, Set Two, ¶ 13.) Based on counsel's representations, the court estimates that counsel reasonably spent 1.2 hours in connection with preparing these discovery motions and 1 hour to appear at the hearing on these motions, which 2.2 hours. (See Gonzalez-McCaulley Decl. Re: RFP, Set Two, ¶ 13.) The rate of \$250 multiplied by 2.2 hours equals \$550.00. Therefore, the requests for monetary sanctions are GRANTED in the amount of \$550.00.

REQUESTS

FOR EVIDENTIARY, ISSUE, AND TERMINATING SANCTIONS

In

addition to the monetary sanctions, Defendant Young requests evidentiary, issue, and terminating sanctions. For the following reasons, the requests for nonmonetary sanctions are DENIED.

Legal

Standard

The

court may impose a monetary sanction, issue sanction, evidence sanction, terminating sanction, or contempt sanction on a party who engages in conduct that misuses the discovery process. (See Code Civ. Proc., § 2023.030.) Misuse of the discovery process includes “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (g).) Because the purpose of sanctions is remedial and not punitive, sanctions should “serve to remedy the harm caused to the party suffering the discovery misconduct.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 74.)

“Discovery sanctions must be tailored in order to remedy the offending party’s discovery abuse, should not give the aggrieved party more than what it is entitled to, and should not be used to punish the offending party.” (*Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1217.) “[A]bsent unusual circumstances, nonmonetary sanctions are warranted only if a party willfully fails to comply with a court order.”

(*Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 618–619.) Terminating sanctions should only be ordered when there has been previous noncompliance and it appears a less severe sanction would not be effective. (Link v. Cater (1998) 60 Cal.App.4th 1315, 1326.)

Discussion

Defendant

correctly asserts that Plaintiff Alvarado failed to comply with discovery, a misuse of the discovery process. (See Code Civ. Proc., § 2023.010, subd. (d).) However, the court finds there is no indication that Alvarado willfully failed to comply with a court order or that monetary sanctions would be ineffective.

Thus, the record does not support the imposition of nonmonetary sanctions at this time. (See *Aghaian*, supra, 64 Cal.App.5th at 618–619; see also *Link*, supra, 60 Cal.App.4th at 1326.)

Therefore, the requests for nonmonetary sanctions are DENIED WITHOUT PREJUDICE.

CONCLUSION

For

these reasons, the motions re: Form Interrogatories, Set Two; Special Interrogatories, Set One; Requests for Admission, Set One; and Requests for Production, Set Two are GRANTED.

Plaintiff

is ordered to serve verified responses to Defendant's discovery, without objections, in ten (10) days.

The

requests for monetary sanctions are GRANTED. Defendant Jason Young is AWARDED sanctions in the amount of \$550.00.

Monetary sanctions are due and payable in thirty (30) days.

The

requests for evidentiary, issue, and terminating sanctions are DENIED WITHOUT PREJUDICE.